

European Contract Law
February – May 2007

Teaching Staff

Prof. Dr. Alain Verbeke

Prof. Dr. Cornelius van der Merwe (Aberdeen/Stellenbosch) (Visiting Professor)

Dr. Nicole Kornet (Maastricht) (Guest Lecturer)

Alexia Bertrand (Teaching Assistant)

Kristof Vanhove (Teaching Assistant)

Els Berckmans (Secretary)

Info

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Class Schedule

Concrete dates will be available on Blackboard.

Introduction

Prof. Alain Verbeke

14 February 2007

2 hours

PART I

Comparative Reflections on Contract Law

Underlying Values and Interactions in Contract Law -

Prof. Alain Verbeke

21 February 2007

2 hours

Contract Law in Mixed Legal Systems. South-Africa and Scotland

Prof. Cornelius van der Merwe

9 hours

Contract Interpretation and Gap Filling. Comparative and Theoretical Perspectives

Dr. Nicole Kornet

3 hours

COURSE MATERIALS: READER

MEMO 1 (see exam requirements)

PART II **Negotiation**

Group 1 (maximum 24 students)

Workshop on Negotiation

Prof. Alain Verbeke

Alexia Bertrand

24 hours

Format developed by Professor Robert Mnookin, Harvard Law School and Director of the Harvard Program on Negotiation

This workshop is based on the Harvard Law School Format of three weeks devoting each week to one of the tensions in a negotiation. In this workshop, we spend one full day for each tension. We use all the Harvard powerpoint presentations, videos and cases.

Three Saturdays from 9 am – 6 pm

This workshop is rather demanding and admission is limited to maximum 24 students. All interested students may register on a list. The students that can attend the workshop are then selected at random from this list. Admission is subject to a written statement of commitment to prepare all cases and attend to all sessions.

COURSE MATERIALS:

- Powerpoint presentations
- Cases
- R. Mnookin et al., *Beyond Winning*, Belknap/Harvard, 2000

JOURNALS (see exam requirements)

Group 2

Negotiating to Create Value in Deals and Disputes

Prof. Alain Verbeke

15 hours

COURSE MATERIALS: R. Mnookin et al., *Beyond Winning*, Belknap/Harvard, 2000

MEMO 2 (see exam requirements)

Exam requirements

- For part I - Memo 1 of 3000-4000 words on an issue on comparative contract law. You must submit a topic for approval. The memo should have particular attention for interactions and underlying values.
- For part II group 1 - preparing reading and writing assignments (cases) for the workshop and writing of three journals (500 words each) and one final journal (1000 words).
- For part II group 2 - Memo 2 of 3000-4000 words on an issue or aspect of negotiation of contracts.
- Oral exam on all course materials and materials discussed during classes.